[Letter Head]

[Date of application]

The Divisional Police Officer,
Bwari Police Station,
Bwari, Abuja.

Sir,

Application for Bail

We are solicitor to Onyemaechi Thank God of 21, Yugo, Bwari, Abuja who is currently under arrest and detention at your station and shall latter be referred to as "Our Client". We humbly apply for his bail on self-recognition.

It is part of our client instruction that he is arrested and detained in connection with alleged offence of stealing of one MR. Ajayi Shehun of no 3 origin street, Ekiti at central market Abuja

Sir, our client pledge to appear at the station anytime he is requested by you or any of your officers, we recommend Lucky Chima Agor, roommate of our client of No. 4 Aba Road Port Harcourt, as surety for our client' bail

We remain.

Yours Faithfully

Oboagwina Caleb
managing partner

HIGH COURT IN THE NORTH uses Motion on Notice (N- North N- Notice)

IN THE HIGH COURT OF KANO STATE
IN THE KANO JUDICIAL DIVISION
HOLDEN AT KANO

CASE NO

BETWEEN

THE STATE …… COMPLAINANT/RESPONDENT

AND

OLUWA SHEHUN… …… ACCUSED/APPLICANT

MOTION ON NOTICE

BROUGHT UNDER SECTION 341(3) OF THE CRIMINAL PROCEDURE CODE LAW OF KANO STATE AND SECTION 36(5) OF THE CONSTITUTION OF THE FEDERAL REPUBLIC OF NIGERIA 1999

TAKE NOTICE that this Honourable court shall be moved on the …..Day of ….2019 at the hour of 9 o'clock or so soon thereafter as counsel for the Accused/Applicant, OLUWA SHEHUN shall be heard praying this Honourable court for:

1. **AN ORDER** admitting OLUWA SHEHUN the accused/applicant to bail;

ANY FURTHER ORDER OR ORDERS as this Honourable court may deem fit to make in the circumstance.

Dated this ……. Day of …….. 20…….. [Date of the exams]

…..……..
Oyanrin Michael Esq.
Oyatobility chambers,
Counsel to the Applicant.

FOR SERVICE ON:
The Attorney-General,
Ministry of Justice,
Kano State

HIGH COURT IN THE SOUTH uses summons (S- summons S south)

IN THE HIGH COURT OF OYO STATE

IN THE IBADAN JUDICIAL DIVISION

HOLDEN AT IBADAN

CHARGE NO…….

BETWEEN:

THE STATE ……. COMPLAINANT/RESPONDENT

AND

AKINDELE FEMI …….. ACCUSED/APPLICANT

SUMMONS BROUGHT UNDER SECTION 118(1) OF THE CRIMINAL PROCEDURE LAW OF OYO STATE AND SECTION 36(5) OF THE CONSTITUTION OF THE FEDERAL REPUBLIC OF NIGERIA 1999.

LET ALL PARTIES concerned attend this Honourable court on the …..day of ….2018 on the hearing of an application on the part of counsel for Accused/Applicant for;

AN ORDER admitting AKINDELE FEMI the Accused/Applicant to bail in respect of the charge No…….

AND FOR SUCH FURTHER ORDER OR ORDERS as this Honourable court may deem fit to make in the circumstances.

Dated this ……. Day of …….. 20…….. [Date of the exams]

……

Oboagwina Caleb Esq,

Easy Read Chambers

Ibadan.

Counsel to the Applicant.

FOR SERVICE ON:

The Attorney-General,

Ministry of Justice,

Oyo State

AFFIDAVIT IN SUPPORT OF BAIL APPLICATION

IN THE HIGH COURT OF KANO STATE
IN THE KANO JUDICIAL DIVISION
HOLDEN AT KANO

CASE NO…….

BETWEEN

THE STATE ------ COMPLAINANT/RESPONDENT

AND

OLUWA SHEHUN… …… ACCUSED/APPLICANT

AFFIDAVIT IN SUPPORT OF APPLICATION FOR BAIL

I, Oluwa Shehun, male, adult Nigerian, resident at 15, Udoneria Street, Shomolu, Lagos, do hereby make oath and state as follows:

1. That I am the accused/applicant in this case and by virtue of my position, I am conversant with the facts of the case and the circumstances leading to this case.
2. That I was arrested by the police officers of the Kano Division, Kano on Friday the 20th of February 2014 on the allegation of robbery of one Miss Akoura Chinelo on the dame date.
3. That we were arraigned before the Judge of the High Court Kano, on 20th March 2014 on a charge of robbery. The charge sheet is hereby attached and marked as EXHIBIT K1
4. That I am an out-patient at the Gwagwalada Specialist Hospital where I have been undergoing treatment for renal failure. The report is hereby attached and marked EXHIBIT K2.
5. That the prison which I am kept has no facilities for the treatment of the kind of ailment.
6. That I can barely stand on my feet for more than 10 minutes at most.
7. That I make this affidavit in good faith believing same to be true by virtue of the Oaths Act

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Deponent

SWORN to at the High Court Registry, Abuja
This _____day of_____2015

BEFORE ME

_____

COMMISSIONER FOR OATHS

In the south

"The sentence of this court upon you is that you be hanged by the neck until you be dead and may the lord have mercy on your soul."

In the North

"The accused be hanged by the neck till he is dead"

In the Lagos

"The sentence of this court upon you is that you be hanged by the neck until you be dead and may the god have mercy on your soul."

In the Federal Capital Territory

"The sentence of this court upon you is that you be hanged by the neck until you be dead or by lethal injection"

GROUNDS OF APPEAL

"GROUND ONE

The learned trial court erred in Law when it held that Police Officers have no power to prosecute Criminal cases in the superior Courts.

PARTICULARS OF ERROR

There is nothing in the law limiting the powers of public prosecution of the police to the inferior courts.

GROUND TWO

The trial court erred in law when it held that a Police Officer must be a qualified Legal Practitioner to prosecute Criminal Cases in the superior Courts

PARTICULARS OF ERROR

The law empowering the police to prosecute cases in the superior courts does not limit the exercise of the power to the lawyers in the service of the Police Force."

OMNIBUS GROUNDS OF APPEAL

"That the decision of the court is unreasonable and cannot be supported by evidence"

QUESTION 1

On the night of December 20, 2012 when the working of Nupec Petroleum Company closed for business for the year, Benjamin Okoroafor, Accountant conspired with his colleague Dauda Belubelu an Accounts Clerk in his department to set the building on fire in order to conceal the fraud on the company account. they did set the building on fire with the help of the gateman, Mallam Samanbo who let them in on this fateful night. But for the timely intervention of the fire Brigade Officers stationed at Maitama District, Abuja, close to the company, the entire building would have been razed to the ground. The duo thinking they have succeeded with their act headed for the Nnamdi Azikiwe International Airport Abuja with the intention of escaping to Cairo, Egypt. Two investigating police officers were sent to the houses of the suspects when the incident was reported to carry out searches. In the house of the first suspect, Benjamin Okorafor, accounting documents belonging to the company were found in addition to fake passports and fake US Dollars.

In the house of the second suspect, Dauda Belubelu, his wife Hanatu who was in purdah was thoroughly searched by the policemen and although noting incriminating was found on her, she was nevertheless arrested and taken to the police station.

The two suspects ran into their old time friend Chibuzor who delayed them by exchanging pleasantries and in the process, they missed their flight to Cairo, Egypt. Whilst they were considering what to do, Dauda's wife phoned him and told him that she has been arrested and was now in police custody. Dauda Belubelu went to the police station to see his wife and he was immediately arrested and kept in custody along with the gateman, Mallam Samanbo who was already arrested by the police. Three days later Benjamin Okorafor was arrested on a tip off whilst trying to cross the border to Cameroun. One week after their arrest, the three suspects were arraigned before the High Court FCT, Abuja on charges of conspiracy, arson and unlawful possession of fake passport and fake currencies. The accused persons pleaded guilty to all the counts including the unlawful possession of fake US Dollars and fake international passports. The trial judge immediately convicted them and sentenced them to terms of imprisonment of three years on each count. With the aid of judicial and statutory authorities answer the following questions:

(a) Comment on the search conducted by the policemen on Mrs. Hanatu Belubelu

(b) What is the procedure that the court will follow before convicting them upon a plea of guilt?
(c) As prosecuting counsel what steps would you have taken to ensure that the counts relating to the fake US Dollars and fake international passports were proved beyond reasonable doubt?
(d) Assuming the arrest of Mrs. Dauda Belubelu was in Lagos, comment on the legality or otherwise of the arrest.

Answers

QUESTION 1 A

The search conducted by the 2 male police men on the body of Hanatu was illegal and a breach of right of dignity of the human person, being a woman. See S. 34 CFRN 1999, S.44 (3) CPC and S.82 CPC.

Also as a woman observing puhdah and not being the suspect she should be given reasonable time to withdraw from the premises before the search for the officers to enter to conduct the search into the house. S. 79 CPC. There was no reasonable suspicion of omissions of any offence to warrant the arrest of Mrs. Daudu, therefore, the arrest was illegal and unlawful.

QUESTION 1B

The court shall record the plea of Benjamin and Daudu as nearly as possible in the words used by them. Plea must be clear, unambiguous and unequivocal. If the court is satisfied that the accused intend to admit the commission of the offence, it shall proceed to convict them after the prosecution is called upon to narrate the facts of the case, which must support the charge. See S. 161(3) & S.187 CPC. Where expert evidence is required, such evidence to be provided. Stevenson v. Police.

QUESTION 1C

I will make sure that I tender in evidence the fake US Dollars and the fake passport recovered from the suspects as exhibits. I will adduce forensic (expert) evidence to prove that the US Dollars and passports are indeed fake and were found in the possession of the accused persons. Essien v. King; Stevenson v. Police

QUESTION 1D

If the arrest of Mrs. Daudu were to be in Lagos, the answer would have been the same, relying on S.S (2) & S.7 (3) ACJL & S.34 CFRN. Also, there was no reasonable suspicion of commission of any offence to warrant the arrest of Mrs. Daudu, therefore, the arrest was illegal and unlawful.

QUESTION 2

Hon. Justice Amalinze Okoduwa was on his way to his Ikeja Court in the early hours of Monday, June 23, 2014 when he was caught in a heavy traffic jam along Ikeja/Maryland Road. Suddenly, there was pandemonium and people ran in various directions for safety. The Judge managed to navigate the traffic but encountered a bonfire roadblock set up by officers of the Nigerian Navy protesting the death of their colleague who was knocked down by the State Government owned mass transit bus.

The protesting officers refuse to clear the road for the Judge broke the windscreen of his car. The Judge immediately ordered his Orderly to arrest the ring leader Lieutenant Kappa Kappa. The orderly arrested him, handcuffed him on the spot and took him to the Police Station.

Lieutenant Kappa Kappa was charged with the offence of rioting and malicious damage to property. Upon his arraignment, he did not plead but kept mute. It was observed that it was the Judge's Orderly that read the charge as a result of the unavailability of the Court Clerk. The GOC Commanding 92 Division of the Nigerian Military Cantonment, Ikeja, General Abuli Abuli appeared in court to represent the accused person. His appearance was objected to by the prosecution on the ground that he was not a legal practitioner. General Abuli Abuli argued that since the accused was under his command, he had the right to represent him in court and that the court could not try the accused, because military officers do not appear before bloody forestall any disruption of the trial by the military. The court also excluded members of the public and the press attending the trial.

With the aid of relevant judicial and statutory authorities, answer the following questions:

(a) Comment on the Judge's instruction to his Orderly to arrest Lieutenant Kappa

(b) Comment on the propriety of the action of the Judge's Orderly in handcuffing Lieutenant Kappa.

(c) Comment on the attitude of Lieutenant Kappa who did not plead, but kept mute upon his arraignment and what the trial Judges should have done.

(d) Comment on the propriety of the Judge's Orderly acting as the Court Clerk by reading the charge to the accused person as a result of the unavailability of the Court Clerk.

(e) Comment on the right of audience of General Abuli before the Court to represent Lieutenant Kappa.

(f) Comment on the propriety of the trial of Lieutenant Kappa before a civilian court.
(g) Comment on the date and venue of the arraignment of Lieutenant Kappa.
(h) Comment on the exclusion of the public and the press from the trial. Under what circumstances (if any), can the court exclude the public and press men from proceedings.

ANSWERS

QUESTION 2 A

The instruction by Hon. Justice Amalinze Okoduwa to his Orderly to arrest Lieutenant Kappa accords with the position of the law. A person suspected of having committed an offence in his presence or caught in the act of committing an offence may be arrested without warrant by;

1. the police
2. a judicial officer
3. a private person

A Judge is empowered to arrest by himself such person or order any other person to arrest such person who commits an offence in his presence. See Section 15 ACJL 2011; ONITIRI V OJOMO. Therefore in the instant case, the order was lawful.

QUESTION 2B.

A person arrested ordinarily is not to be handcuffed, be bound or be subjected to unnecessary restraint except by an order of a judicial officer. However, in certain circumstances, an arrested person may be handcuffed if;

1. There is reasonable of him being violent
2. Where there is a risk of him attempting to escape
3. Where restraint is necessary for the safety of the arrested person. See Section 2 ACJL 2011.

QUESTION 2C.

Upon arraignment there are several options open to an accused person after the charge has been read to him. One of the options is that he may choose to keep mute after the charge has been read to him. Where an accused person (Lieutenant Kappa) keeps mute as in the instant case, the Court is enjoined to inquire and/or investigate into the cause of his muteness to determine whether the cause of the muteness is as a result of malice or as a result of visitation of God.Where the court finds that it is as a result of malice, the court will enter a plea of not guilty for him and the trial will proceed. On the other hand, where the court finds that the muteness is as a result of visitation of God, the trial will not proceed, but the accused will be remanded at the pleasure of the Governor. See Section 315 ACJL 2011APOSI V THE STATE

QUESTION 2D.

The Police Orderly is not an officer of the court and accordingly, he cannot read the charge to the accused person irrespective of the unavailability of the court clerk. The proper procedure is for the judge to adjourn the proceedings pending when the court clerk and/or Court Registrar will be available. Therefore, the reading of the charge by the Police Orderly nullifies the proceedings.

QUESTION 2E.

A person charged with a criminal offence is entitled to elect whether to defend himself in person or through a legal practitioner of his own choice. See Section 36(5) (c) of 1999 Constitution (as amended). However, such legal practitioner must not suffer from any disability. It is only a legal practitioner that has the right of audience in Nigeria Courts that may represent an accused person. See Section 8(2) Legal Practitioners Act Cap L.11 LFN 2004; Awolowo v Usman Sarki.

There are three categories of persons entitled to practice as legal practitioners in Nigeria by virtue of the definition contained in Section 24 of Legal Practitioners Act, Cap L.11 LFN 2004 and they are;

1. Legal practitioners entitled to practice generally
2. Legal practitioners or persons entitled to practice for purposes of a particular office, and
3. Legal practitioners entitled to practice for the purpose of particular proceedings

Based on the above postulations, General Abuli the GOC Commanding 92 Division of the Nigerian Army Ikeja does not fall within the above categories and by extension his name is not on the role of legal practitioners authorized by law to practice as advocates in the Supreme Court of Nigeria. Accordingly he does not have a right of audience to represent Lieutenant Kappa in any court in Nigeria.

QUESTION 2F.

A military officer who commits civil offence is not immune from trial in a regular court. The offence committed by Lieutenant Kappa in the instant case is a civil offence and he can be tried in a regular court. See section 6(6) (b) 1999 Constitution as amended; section 114(2) & 170(1) Armed Forces Act. However, where the civil court assumes jurisdiction first for his trial and he is tried and convicted or acquitted, he cannot again be tried by a Court Martial for the same offence because he can plead autre fois acquit or convict. But if the Court Martial assumes jurisdiction first in his trial, whether or not he was convicted or acquitted the civil court can

try him again for the same offence, but during sentence have regard to the punishment already imposed by the Court Martial. See section S. 36(9) 1999 Constitution; section 170(2) Armed Forces Act.

QUESTION 2G.

In Lagos State, the juridical days for the sittings of Courts are Mondays-Fridays. Saturdays, Sundays and public holidays are regarded as non-judicial days. However, in exceptional cases the court may object to the agreement of parties and their counsel sit on a non-judicial day. See OSOSANMI v COMMISSIONER OF POLICE. In the instant case, it was not shown that parties and their counsel agreed that the arraignment should be on a Sunday and since it was an arraignment the consent of the accused will not be sought and therefore the purported arraignment is a nullity. On the venue of trial that was held in an uncompleted building in a primary school, the judge is empowered to designate any place as a court room for the purpose of a particular proceeding provided it is in public where members of the public will have access to. See section 36(3) & (4) of 1999 Constitution of Nigeria (as amended). Therefore, the conduct of the trial (arraignment) in an uncompleted building in a primary school does not nullify the proceedings.

QUESTION 2H.

The general rule is that the public and the press must have access to the court room to witness any trial. A trial conducted in secrecy is null and void. See Section 200 ACJL 2011; Section 36 (3) & (4) of 1999 Constitution of Nigeria (as amended).

However, to this general rule there are exceptions to wit:

The members of the public and press may be excluded on grounds of public policy, public decency, expediency, public morality, on grounds of public safety or where the welfare of persons who have not attained the age of 18 years is involved in the trial held in a Juvenile Court. See sections 201 & 202 ACJL 2011; Section 36(4) (a) (b) of 1999 Constitution of Nigeria (as amended).

QUESTION 3

Major Bunima Marshal, Major Briggstone Paco and Lieutenant Colonel Zamparoni Hakeem where charged before the Special court Martial for the offence of desertion and cowardly behavior. The charge was filed on May 10, 2017 and trial commenced on May 12, 2017. It was alleged that on November 12, 2012, whilst fighting the insurgents at Maiduguri, Borno State, they took off their uniform in the heart of the battle and ran away to Cameroun.

Brigadier General Akporo is the President of the Special Court Martial while Colonel Bakayoko, Colonel Habeeb and Lieutenant Colonel Zanga are members. Mrs. Aino Balu, a legal practitioner of five years post-call experience is the Judge Advocate and the Nigerian Bar representative. No waiting member and Liaison Officer were appointed. The convening order was signed on the arraignment date.

At the trial, objection was raised to the jurisdiction of the Court Martial to try the defendants as the offences were committed more than four years, before the arraignment date. The Court Martial denied a private legal practitioner engaged by the 2nd defendant right of audience, on the ground that he was not a member of the Armed Forces.

In the course of trial, the Honourable Attorney-General of the Federation entered *nolle prosequi* due to the nature of the trial. It was accordingly upheld.

Answer the following questions with judicial and statutory authorities.

(a) Comment on the propriety or otherwise of the qualification of the Judge Advocate.
(b) Comment on the propriety or otherwise of the composition of the Special Court Martial as it relates to the President and other members.
(c) Is the Special Martial duly constituted without a Liaison Officer and a Waiting Member? Give reasons for your answer.
(d) Comment on the jurisdiction of the Special Court Martial to try the defendants for the alleged offence.
(e) Comment on the propriety or otherwise of the denial of right of audience to the 2nd defendant's counsel.
(f) Comment on the legality or otherwise of the *nolle prosequi* entered by the Honourable Attorney-General of the Federation.

ANSWER 3

QUESTION 3 A

It was improper of Mrs. Aino Balu, a legal practitioner of 5 years post call and representative of the NBA to have been appointed as a judge advocate because she is not a commissioned officer. See section 133(6) of the Armed Forces Act 2004.

QUESTION 3B.

The composition of the special court martial as it relates to the president and the members is valid. This is because the law requires that the composition of the court should not consist of officers below the rank of those to be tried. The president (Brigadier General Akporo) and the members (i.e. Colonel Bakayoko, Colonel Habeeb and Lt Colonel Zanga) are all not below the

rank of the Defendants. See section 129 of the Armed Forces Act 2004; Okoro v Nigeria Army Council.

QUESTION 3 C.

The special court martial is duly constituted notwithstanding the absence of the waiting member and the liaison officer. This is because their absence cannot vitiate the proceeding as they lack voting rights and are ordinarily not members of the court martial for the purposes of constituting a quorum. See the case of Nigerian Army v Dodo.

QUESTION 3D.

The special court martial has the jurisdiction to try the defendants who are all subject to the armed forces service law and are currently in active service notwithstanding the period the alleged offence took place. See section 130 (1) & (3) of the Armed Forces Act 2004. Assuming they are even out of service currently, the protection offered by section 169(1) does not avail them as this is a case of desertion.

QUESTION 3E.

The denial of the right of audience to the counsel to the 2nd defendant by the court martial on the grounds that he is not a member of the armed forces is completely wrong. The constitution allows every charged with a criminal offence the right to defend himself either in person or by a legal practitioner of his choice. See section 36 (6) (c) of the 1999 Constitution (as amended). See also Uzodinma v C.O.P

QUESTION 3F.

The *nolle prosequi* entered by the Attorney-General and upheld by the court martial was wrong. This is because the Attorney-General lacks the powers to institute, undertake or discontinue criminal proceedings before a court martial. See section 174(1) of the 1999 constitution (as amended).